

Special Rules for Regulating the Construction and Maintenance in the Vicinity of Civil Aerodromes, 1970

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State of Tamilnadu- Act

Special Rules for Regulating the Construction and Maintenance in the Vicinity of Civil Aerodromes, 1970

TAMILNADU

India

Special Rules for Regulating the Construction and Maintenance in the Vicinity of Civil Aerodromes, 1970

Act 277 of 1972

Published on 10 March 1972

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Special Rules for Regulating the Construction and Maintenance in the Vicinity of Civil Aerodromes, 1970

Published vide Notification No. G.O. Ms. No. 502, Local Administration, dated 10th March 1972) - S.R.O. No. A-277 of 1972

Published in Part V, Page 320 of the Tamil Nadu Government Gazette, dated 5th April,1972.

In exercise of the powers conferred by section 191 and sub-section (1) of section 303 of the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920), the Governor of Tamil Nadu hereby makes the following special rules for regulating the construction of buildings, installations or structures and planting of trees in the vicinity of Civil Aerodromes.

1.

Short title and extent.

- These rules may be called the Special Rules for Regulating the Construction and Maintenance in the Vicinity of Civil Aerodromes, 1970.

2.

Application of building rules.

- These rules shall be in addition to the building rules made under the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920), but shall have effect notwithstanding anything inconsistent therewith contained in the building rules.

3.

Definition.

- For the purpose of these rules -

(i)

"vicinity of the Civil Aerodrome" and "vicinity of Air-force, Air-field and installations" means the areas and the distances respectively specified in Schedules I and II appended to these rules; and

(ii)

"Schedule" means the Schedule appended to these rules.

4.

Prohibition of buildings in the vicinity of Civil Aerodromes or Air-force or Airfield and Installation.

- No person or authority other than the Civil Aviation Department or the Ministry of Defence, Government of India or the State Government shall erect or re-erect or make material alterations in any building, installation or structure in the vicinity of a Civil Aerodrome or Air-force, Airfield and installations save as expressly provided in these rules.

5.

Application for construction or reconstruction of buildings, structures and Installations.

- (i) Every person or authority other than the Civil Aviation Department or the Ministry of Defence, Government of India or the State Government who intends to erect, re-erect or make material alterations in any building, installation or structure in the vicinity of a Civil Aerodrome or Air-field and installations shall give an application in writing in duplicate to the municipal council.

(ii)

The application shall be accompanied by plans and statements in duplicate relating to the proposed work, and indicating precisely the distance from the outer boundaries of the Civil Aerodrome or Air-force, Air-field and Installation, as the case may be.

6.

Obtaining of report from Aerodrome Authority.

- The municipal council, on receipt of the application under rule 5, shall forward one copy of the application to the Aerodrome Authority or the Station Commander of the Air-force, Airfield and Installations, as the case may be, and obtain as report, only in respect of constructions that fall within 2,400 metres from the perimeter of the Aerodrome or Air-force or Air-field and Installations and then the municipal council will see that the standards prescribed in the Schedule are adhered to; and in respect of constructions that fall beyond 2,400 metres, the municipal council shall see that the standards prescribed in Schedule I and II are adhered to.

7.

Time-limit for intimating objection by the Aerodrome Authorities.

- The Aerodrome Authority or Station Commander of the Air-force, Air-field and Installations, as the case may be, shall intimate to the municipal council within 30 days from the date of the receipt of the documents under rule 5 whether or not he has objection to the proposed construction.

8.

Refusal of permission.

- (i) If the Aerodrome Authority or Station Commander of the Air-field, Air-force and Installations objects to the proposed work or any part thereof, the municipal council shall refuse permission for the work or its parts, as the case may be.

(ii)

Permission shall not be given by the municipal council for erection, re-erection of or making alterations in a building, installation or structure in vicinity of a Civil Aerodrome or Air-force, Air-field and installations, if "No Objection Certificate"

is not received by the municipal council from the Aerodrome Authority or the Station Commander of the Air-force, Air-field and Installations, as the case may be -

(a)

if the height of the proposed work exceeds or would when carried out, exceed the limit specified in Schedule I in the case of Civil Aerodrome and the limit specified in Schedule II in the case of the Air-force, Air-field and Installations; and

(b)

if the proposed work involves the construction of chimneys letting out smoke.

9.

Planting of trees.

- No tree shall be planted by any person or authority within the limits of the distance of a Civil Aerodrome mentioned at Serial No.9 of Schedule I, without first obtaining the permission in writing from the Aerodrome Authority.

10.

Erection of radio-masts.

- No person shall fix or erect within the limits of the municipality any radio-mast or such similar types of installations, exceeding five hundred feet in height without first obtaining the permission in writing from the Director-General, Civil Aviation.

The elevation of the top (which is also called the reduced level of the top) of the buildings, structures, installations proposed to be constructed in the neighbourhood of International Air-ports and their alternates should be within the limits indicated in the table below: -

I

Serial number and limits of distance from the aerodrome reference point measured horizontally, buildings,

structures elevation of the aerodrome or installations

Difference between the elevation of the top of the buildings, structures or installations and the (Aerodrome reference point)

(1)

(2)

I. International Airports:

1. Between 8,400 metres and 20 nautical kilometres.

Less than 150 metres.

2. Between 7,200 metres and 8,400 metres.

Less than 120 metres.

3. Between 6,000 metres and 7,200 metres.

Less than 90 metres.

4. Between 4,800 metres and 6,000 metres.

Less than 60 metres.

5. Between 4,200 metres and 4,800 metres.

Less than 48 metres.

6. Between 3,600 metres and 4,200 metres.

Less than 36 metres.

7. Between 3,000 metres and 3,600 metres.

Less than 24 metres.

8. Between 2,400 metres and 3,000 metres.

Less than 12 metres.

9. Between 2,400 metres and less.

Nil. Except with the prior concurrence of the local aerodrome authorities.

II. Other Civil Airports and Civil Aerodromes:

1. Between 7,800 metres and 20 nautical

kilometres.

Less than 150 metres.

2. Between 6,600 metres and 7,800 metres.

Less than 120 metres.

3. Between 5,400 metres and 6,600 metres.

Less than 90 metres.

4. Between 4,200 metres and 5,400 metres.

Less than 60 metres.

5. Between 3,600 metres and 4,200 metres.

Less than 48 metres.

6. Between 3,000 metres and 3,600 metres.

Less than 36 metres.

7. Between 2,400 metres and 3,000 metres.

Less than 24 metres.

8. Between 1,800 metres and 2,400 metres.

Less than 12 metres.

9. Between 1,800 metres and less.

Nil.

Except with the prior concurrence of the local aerodrome authorities.

II

(Referred to in rule 3 and rule 8)

Serial number and distance, area etc.

Particulars of structures

(1)

(2)

1. Within 670 metres

(a) Radar, i.e. -

(i) Fixer Station.

(ii) High Frequency

Direction Finding Station, Structures of any height or depth

(iii) Very High

Frequency Direction Finding Station.

(iv) Sector

Operations Centre.

(v) Ground Controlled

Interception Station,

(b) Wireless Receiving Station.

2. Between 670 and 3,150 metres of (i), (ii) and

(iii) of item 1 (a) above.

Structures more than 24 metres in height.

3. Within the

approach circuit of an airfield, i.e. -

(a) between 1,050

metres and 3,150 metres of the perimeter of an airfield having a runway or runways.

(b) with 3,150 metres of the perimeter of the available landing area of an airfield having no runway.

Structures of which the highest point if joined to the point of perimeter of the airfield subtend with the plan of the runway or landing area at an angle of more than one degree

and nine minutes.

4. Within the flying funnel areas of an airfield
up to 1,050 metres from nearest end of the runway.

- Do -

Explanation. - A Flying Funnel area may be defined as the area included between two lines paid off at an angle of fifteen degrees outwards from the point where the outer-edge of the sixty-eight metres cleared strip joins the perimeter track and the area bounded by lines extended from the edge of the full strip to where they meet the fifteen degree lines.

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